JUSTICE THOMAS, dissenting.

Munson Hunter deceived others to make himself nearly half-a-million dollars. The Government charged him with 10 counts of fraud. If a jury had convicted him of all 10 counts, Hunter could have received a 300-year sentence. Instead, Hunter knowingly and voluntarily made an agreement with the Government. Under the agreement, the Government would dismiss nine counts. In exchange, Hunter would plead guilty to the remaining one and waive his right to appeal his sentence unless it exceeded the statutory maximum—a 30-year prison term followed by up to 5 years of supervised release. Thanks to the agreement, Hunter received a 51-month prison term, followed by three years of supervised release, less than 2% of the prison time to which the indictment exposed him. Now, Hunter wants to keep his reduced sentence but take back the appeal waiver, and the Court holds that he may be able to do so.

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I see no basis for excusing Hunter from his appeal waiver. Defendants could not appeal federal criminal sentences at all for more than 100 years after the founding; only then did Congress create the statutory right to do so. "Like many constitutional and statutory rights, the right to appeal can be waived by the defendant, and once that choice is finally made, the defendant is bound by the decision." *Garza* v. *Idaho*, 586 U. S. 232, 257 (2019) (THOMAS, J., dissenting). The Court today creates a "miscarriage-of-justice" exception to this rule. But, it cannot identify any source of law for its exception. Neither the contract-law principles that Hunter invoked nor this Court's supposed "supervisory power" give it the authority to override Hunter's appeal waiver.

Without any source of law to justify its decision, the Court appears to rest on its policy concern that holding defendants to their waivers may sometimes lead to unfair results or make federal courts look bad. But, policy concerns are not rules of decision in courts of law. Because I would decide

Hunter's case based on law rather than policy, I respectfully dissent.

I

The Government charged Hunter with 10 counts of wire fraud, bank fraud, and conspiracy to commit wire and bank fraud. 18 U. S. C. §§1343, 1344, 1349. Each count carried a statutory maximum sentence of 30 years in prison. If the jury had convicted Hunter of all 10 counts, the District Court could have made the sentences run consecutively. See §3584(a).

The Government and Hunter reached a plea agreement. Hunter promised to plead guilty to one count of wire fraud. In exchange, the Government promised to dismiss the nine remaining counts. The agreement noted that Congress had authorized, as punishment for the one count that Hunter was pleading guilty to, a prison term of up to 30 years, so the deal reduced Hunter's statutory maximum sentence from 300 years to 30 years. The agreement also noted that the court could impose a term of supervised release, which "is a form of postconfinement monitoring that permits a defendant a kind of conditional liberty by allowing him to serve part of his sentence outside of prison." *Mont* v. *United States*, 587 U. S. 514, 523 (2019) (internal quotation marks omitted). One statutorily authorized condition for a term of supervised release is the requirement that the defendant "undergo available medical, psychiatric, or psychological treatment." §3563(b)(9).

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As part of the plea agreement, Hunter waived his right to appeal. The agreement confirmed that Hunter knew that he had a statutory right to appeal and that by signing the agreement he "knowingly and voluntarily waive[d]" that right. App. to Pet. for Cert. 6a. It stipulated that Hunter knew that this waiver was "made in exchange for the concessions made by the United States in this plea agreement." *Id.*, at 8a. It clarified that Hunter knew that the District

Court "has authority to impose any sentence up to and including the statutory maximum set for the offense," and that "a sentence has not yet been determined by the Court." *Id.*, at 7a, 10a. And, it provided two exceptions: He could appeal to raise an ineffective-assistance-of-counsel claim or to challenge a sentence that exceeded the statutory maximum. *Id.*, at 5a–8a, 10a; see Brief for United States 30.

The District Court discussed the appeal waiver with Hunter, as required by the Federal Rules of Criminal Procedure. When the Federal Rules address appeal waivers, they merely require the District Court to inform the defendant of and ensure that the defendant "understands" the "terms of any plea-agreement provision waiving the right to appeal." Fed. Rule Crim. Proc. 11(b)(1)(N). The District Court carefully adhered to that requirement:

> "The Court: The maximum sentence that you face if you plead guilty is 30 years in prison. . . . Your term of supervised release will be subject to a number of conditions that will be monitored by a probation officer. . . . Do you understand that?
>
> "The Defendant: Yes, sir. . . .
>
> "The Court: If the sentence that I impose is greater than the sentence that you now expect or greater than the sentence that your lawyer or anyone else may have predicted, you will be bound by your guilty plea today, regardless of your sentence. . . . Do you understand that?
>
> "The Defendant: Yes, Your Honor.
>
> "[The Court:] Paragraph 5 says . . . '[d]efendant knowingly and voluntarily waives the right to appeal or collaterally attack the conviction and sentence except that the defendant does not waive the right to raise a claim of ineffective assistance of counsel.' . . . Have you discussed that provision with your lawyer?

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> "The Defendant: No. Well, I understand it, Your Honor.
>
> "The Court: Well, let me just be sure. You're going to be sentenced if I accept your guilty plea. The most frequent basis for an appeal is complaining of this sentence. It's very unlikely that you could appeal that under this waiver. Basically you're agreeing to whatever sentence I impose. Do you understand that?
>
> "The Defendant: Yes, Your Honor." App. 8–11 (paragraph breaks omitted).

After the District Court accepted the agreement, the Probation Office recommended that the court require Hunter to undergo psychiatric treatment as a condition of his supervised release, due to his self-reported mental health problems. At the sentencing hearing, Hunter objected to this recommendation. The District Court responded that Hunter "should take" any drugs that his doctor may eventually prescribe, but it reassured Hunter that if he objected to any prescribed treatment, he could raise his concerns with his probation officer and then with the court. App. to Pet. for Cert. 24a.[1] Before Hunter could be sent to prison for violating his supervised-release conditions, the District Court would have to revoke the supervised-release term after separate proceedings. § 3583(e)(3).[2]

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The District Court sentenced Hunter to 51 months in prison and included as a condition of supervised release that Hunter "must take all mental health medications that are prescribed by [his] treating physician." *Id.*, at 35a.

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[1] By law, Hunter can move for modification of his supervised-release conditions "at any time." 18 U. S. C. § 3583(e)(2).

[2] Appeals of a district court's revocation of supervised release, courts have held, are not barred by a standard waiver of sentencing appeals in a plea agreement. See *United States* v. *Carruth*, 528 F. 3d 845, 846 (CA11 2008) (*per curiam*); *United States* v. *Lonjose*, 663 F. 3d 1292, 1299–1302 (CA10 2011); cf. *United States* v. *Scallon*, 683 F. 3d 680, 683–684, and n. 4 (CA5 2012) (*per curiam*) (reserving this question).

Notwithstanding his appeal waiver, Hunter appealed his sentence. He argued that the mental-health supervised-release condition violates his substantive due-process rights under *Cruzan* v. *Director, Mo. Dept. of Health*, 497 U. S. 261 (1990). The Fifth Circuit dismissed Hunter's appeal because of the appeal waiver. At this time, there is no evidence that Hunter has been prescribed any medication to which he objects or that the District Court has had any reason to consider revocation proceedings. See Reply Brief 18.[3] The Court granted certiorari, 607 U. S. 961 (2025), and now announces a new rule, invalidating any appeal waiver that an appellate court concludes would result in a miscarriage of justice.

II

For over 100 years after the founding, federal criminal defendants had no right to appeal their sentences. Although Congress has now authorized such appeals, defendants remain free to decline to exercise that statutory right or to affirmatively waive it, just like many other procedural rights. Hunter's knowing and voluntary waiver of his statutory appeal rights in his valid plea agreement required dismissal of his appeal.

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A

Defendants may waive their right to appeal, and when they do so in valid plea agreements, those waivers must be enforced.

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[3] Because Hunter cannot say whether he will ever be prescribed objected-to medication, he has conceded that his claim is not ripe under binding Fifth Circuit precedent. Brief for Appellant in No. 24–20211 (CA5), ECF Doc. 19, p. 15, n. 4 (citing *United States* v. *Ellis*, 720 F. 3d 220, 227 (2013) (*per curiam*), and *United States* v. *Carmichael*, 343 F. 3d 756, 761 (2003)). Hunter may well lack Article III standing under our precedents. See *Trump* v. *New York*, 592 U. S. 125, 131–132 (2020) (*per curiam*). The Court nonetheless proceeds to the merits without addressing its jurisdiction.

1

Defendants can waive constitutional and statutory procedural rights. "A criminal defendant may knowingly and voluntarily waive many of the most fundamental protections afforded by the Constitution." *United States* v. *Mezzanatto*, 513 U. S. 196, 201 (1995). They often waive such rights through plea agreements, which always entail waiving the constitutional rights to trial by jury, to confront one's accusers, and to avoid self-incrimination. See *Boykin* v. *Alabama*, 395 U. S. 238, 243 (1969). If defendants can waive constitutional procedural rights, it has long followed that the "same principle, *a fortiori*, applies to a mere statutory or common-law right." 1 J. Bishop, Commentaries on the Law of Criminal Procedure § 118, p. 71 (2d ed. 1872) (Bishop); see also *People* v. *Rathbun*, 21 Wend. 509, 542 (N. Y. Sup. Ct. 1839) (noting that because the "prisoner may even waive his right to a trial," he also has the lesser power to "waive any matter of form or substance"); *Shutte* v. *Thompson*, 15 Wall. 151, 159 (1873) ("A party may waive any provision, either of a contract or of a statute, intended for his benefit"); *People* v. *Lightner*, 49 Cal. 226, 228 (1874) ("As a general rule a defendant may waive any statutory right or proceeding").

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The right to appeal a sentence is a mere statutory right of modern origin. For much of American history, federal criminal defendants had no right to appeal at all. Trial-court judges have always been oath-bound to sentence defendants according to the law. But, for more than a century after the founding, when they made mistakes—even mistakes "apparent on the record"—federal defendants could not go to an appeals court "to revise the sentences of inferior courts in criminal cases." *Ex parte Watkins*, 7 Pet. 568, 574 (1833); see *United States* v. *Sanges*, 144 U. S. 310, 319 (1892) ("For a long time after the adoption of the Constitution, Congress made no provision for bringing any criminal case . . . by writ of error"). Then, as now, the Constitution provided no right to appeal. See *McKane* v. *Durston*, 153 U. S. 684,

687 (1894); *Jones* v. *Barnes*, 463 U. S. 745, 751 (1983). Even defendants sentenced to death could not appeal until 1889. It was thus "100 years before the defendant in a criminal case, even a capital case, was afforded appellate review as of right." *Carroll* v. *United States*, 354 U. S. 394, 400 (1957) (emphasis deleted). Only after that did Congress eventually give all federal defendants a right to appeal. *Abney* v. *United States*, 431 U. S. 651, 656, n. 3 (1977); *Carroll*, 354 U. S., at 400–401.

Congress has now provided defendants a path to seek appellate review of sentences if they so choose. A defendant "*may* file a notice of appeal." 18 U. S. C. § 3742(a) (emphasis added); see also 28 U. S. C. § 1291. But, the right to appeal "depends on assertion," so the defendant can "forfei[t]" his right to appeal by declining to file one or can waive it expressly. *United States* v. *Wenger*, 58 F. 3d 280, 282 (CA7 1995). Because a criminal defendant's right to appeal is "a mere statutory . . . right" that he is free to not invoke at all, Bishop § 118, he plainly "may waive" it, *Shutte*, 15 Wall., at 159.[4]

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[4] To be sure, not all statutory rights can be waived. For instance, the "substantive right" under Title VII to be free from discrimination in the workplace "may not be prospectively waived." *14 Penn Plaza LLC* v. *Pyett*, 556 U. S. 247, 265 (2009). But, deciding to resolve Title VII claims "by way of arbitration instead of litigation does not waive" the underlying substantive "right to be free from workplace . . . discrimination." *Ibid.* Such a decision "waives only the right to seek relief" in one forum as opposed to another. *Id.*, at 265–266.

An appeal waiver does not waive any substantive right, such as the right to be free from cruel or unusual punishment or to receive a sentence below some limit. It instead waives one procedural mechanism for seeking relief in which those underlying substantive rights can be "vindicat[ed]" in one particular forum. *Id.*, at 265. It thus resembles any number of procedural protections that parties routinely waive in litigation. See, *e. g.*, *United States* v. *Mezzanatto*, 513 U. S. 196, 202–203 (1995) (Federal Rules of Evidence); *id.*, at 201–202 (Federal Rules of Criminal Procedure); *Mallory* v. *Norfolk Southern R. Co.*, 600 U. S. 122, 144, and n. 10 (2023) (plurality opinion) (personal jurisdiction); *Mitsubishi Motors*

Waivers in plea agreements are strictly enforced. In *Santobello* v. *New York*, 404 U. S. 257 (1971), the State waived its right to make a sentencing recommendation as part of the defendant's guilty plea. *Id.*, at 258. But, the State recommended the statutory maximum at sentencing anyway, and the trial judge imposed the statutory maximum sentence. *Id.*, at 259–260. On appeal, this Court held that the defendant should either be free to "withdraw his plea of guilty" or be entitled to "specific performance of the agreement," meaning a new sentencing in which the State kept its promise. *Id.*, at 263. Likewise, in *Ricketts* v. *Adamson*, 483 U. S. 1 (1987), the defendant agreed to plead guilty to second-degree murder and testify against his co-conspirators in exchange for the State's promise to drop a first-degree murder charge. *Id.*, at 3. The defendant was sentenced for second-degree murder. *Id.*, at 4. During the retrial for his co-conspirator, the Court held, the defendant faced a "choice": "He could submit to the State's request that he testify at the retrial . . . or . . . his breach of the agreement would restore the parties to their original positions and he could be prosecuted for first-degree murder." *Id.*, at 11. The defendant decided not to testify, and he was prosecuted and convicted for first-degree murder. The Court upheld this conviction, concluding that the State could "enforce the agreement." *Id.*, at 12.

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Accordingly, when defendants waive their statutory appeal rights in plea agreements, those waivers are enforceable. Given that defendants can waive constitutional rights gratuitously, they can certainly waive statutory rights in exchange for enforceable benefits in plea agreements—such as the sentencing recommendation in *Santobello*. And, if defendants

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Corp. v. *Soler Chrysler-Plymouth, Inc.*, 473 U. S. 614, 640 (1985) (holding that agreement to arbitrate is enforceable); *The Bremen* v. *Zapata Off-Shore Co.*, 407 U. S. 1, 15 (1972) (holding that forum-selection clause is enforceable).

are bound by gratuitous waivers, they can also be held to ones from which they benefited—such as the promise to testify in *Ricketts*. Bargained-for waivers of statutory rights thus not only are valid; they must be enforced to ensure that both sides to the agreement receive what they bargained for.[5] A defendant who waives his statutory appeal right in a plea agreement is therefore "bound by the decision." *Garza*, 586 U. S., at 257 (THOMAS, J., dissenting).

The defendant remains bound even though he cannot know exactly what his sentence will be when he signs his waiver. When the defendant knowingly agrees to waive his appeal right, his waiver is knowing precisely because he is made aware of the uncertainty. See Fed. Rule Crim. Proc. 11(b)(1) (requiring the court to ensure the defendant "understands" the appeal waiver and the variability of the possible sentence). Many other waivers entail similar uncertainties. For instance, every plea agreement waives the right to trial. And, defendants remain bound by their plea even when later developments could lead them to regret their waiver in retrospect. See *Brady* v. *United States*, 397 U. S. 742, 756–757 (1970) (holding that guilty pleas are enforceable even after a favorable change in law); *United States* v. *Ruiz*, 536 U. S. 622, 629–630 (2002) (holding that guilty pleas are enforceable even after it is discovered that the Government withheld impeachment evidence); *Tollett* v. *Henderson*, 411 U. S. 258, 266–267 (1973) (holding that guilty pleas are enforceable even after it is discovered that the defendant would have had a claim based on an unconstitutionally selected grand jury).

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At every stage, defendants waive rights despite uncertainty about the consequences. A defendant of course "may waive his right to remain silent, his right to a jury trial, or his right to counsel even if the defendant does not know the specific questions the authorities intend to ask, who will

[5] Because plea agreements involve an exchange of promises, this Court has often analogized plea agreements to contracts. See, *e. g.*, *Puckett* v. *United States*, 556 U. S. 129, 137 (2009).

likely serve on the jury, or the particular lawyer the State might otherwise provide." *Ruiz*, 536 U. S., at 629–630. A defendant has long been able to waive a wide range of procedural rights, such as the right to an arraignment or the right to object to jurors or the right to challenge the constitutionality of the grand jury, "no matter how much this may subsequently prejudice him." F. Wharton, Criminal Pleading and Practice § 733, p. 504 (9th ed. 1889).

B

These well-established principles required dismissal of Hunter's appeal. Hunter knowingly and voluntarily entered into his plea agreement, which contained an express appeal waiver. The text of the appeal waiver barred all sentencing appeals. It included two exceptions that, all agree, are not implicated here. The District Court carefully ensured that Hunter had full awareness of the appeal waiver's consequences. Hunter stood in open court, was asked by a judge whether he understood that he was "waiving or giving up [his] right to appeal," and answered "Yes, Your Honor." App. 12. Further, the plea agreement rested on mutually beneficial promises from both Hunter and the Government: Hunter would plead guilty and would not appeal except in limited circumstances, and the Government would dismiss nine counts and reduce Hunter's maximum sentencing exposure by 270 years. The Government then upheld its end of the bargain.

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If Hunter wants to retain the significant benefits he received through his plea agreement, he cannot renege on the agreement now.[6] Hunter waived his right to appeal, and his

[6] Hunter may well come to regret seeking to appeal his sentence after a favorable deal. As both counsel conceded and the Court does not dispute, the Government can generally seek to void plea agreements in their entirety after defendants breach appeal waivers, which may enable the Government to allege a breach and seek convictions on the dropped counts. Tr. of Oral Arg. 6–7, 60–61; see also App. to Pet. for Cert. 7a.

claim is covered by his appeal waiver, which he knowingly and voluntarily agreed to as part of an enforceable plea agreement. See *Garza*, 586 U. S., at 251 (THOMAS, J., dissenting). It is irrelevant that he may not have expected one particular supervised-release condition when he signed the agreement.[7]

III

The Court does not dispute these principles; it just creates an exception to them. Although Hunter's briefing in this Court primarily argued that various contract-law principles excused him from his waiver, the Court wisely does not endorse that theory; it does not even mention it.[8] Instead of importing contract-law defenses, the Court creates a free-floating "miscarriage-of-justice" exception, which permits ap-

[7] In any event, Hunter should not have been surprised by the mental-health-treatment supervised-release condition that he now challenges. While his appeal was pending, Hunter filed a separate motion to vacate his sentence, claiming that his "history of autism and cognitive disorders called into question the validity of his guilty plea." No. 4:23–cr–00085 (SD Tex.), ECF Doc. 179, p. 5. Hunter described himself as a "severely impaired individual" and noted that it had been "extensively shown" throughout the litigation that he had mental health problems. *Id.*, at 13–14.

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[8] Hunter argued that a plea agreement is a contract and that an amalgamation of various contract-law doctrines—including voidness for public policy, unconscionability, frustration of purpose, and the implied duty of good faith—made his appeal waiver an unenforceable contract. See Brief for Petitioner 9–34; Tr. of Oral Arg. 46 (noting that Hunter went "all in on this contract thing"). Hunter claims that the "best" contract-law principle going for him "is frustration of purpose." Tr. of Oral Arg. 13. But, the frustration-of-purpose doctrine requires that postagreement developments render the contract "virtually worthless" before they void a contract. Restatement (Second) of Contracts § 265, Comment *a* (1979). The plea agreement was not rendered worthless when the District Court included a mental-health treatment supervised-release condition. The plea agreement still achieved a crucial purpose for Hunter—it reduced his maximum exposure from 10 counts and 300 years to 1 count and 30 years. Hunter's other contract-law arguments are further afield, and it is also unclear what role contract law could even play when the defendant has also waived the right in court.

peals despite valid appeal waivers when any of at least four different factual scenarios arise at sentencing. *Ante*, at 727–728.

The Court, however, fails to identify any basis in law for its exception. It identifies no constitutional text, statute, or Federal Rule of Criminal Procedure that even suggests its miscarriage-of-justice exception. And, it identifies no established common-law or equitable doctrine that resembles it. The Court instead grounds its exception in the need to avoid "bring[ing] the judicial system into disrepute." *Ante*, at 717, 727. Because federal courts have a "role . . . in approving and implementing appeal waivers," the Court argues, this Court must create appropriate rules for enforcing them, which should advance the court system's own "'institutional interest.'" *Ante*, at 724–725.[9]

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[9] The Court does not claim that any traditional common-law doctrine supports its miscarriage-of-justice exception. Instead, it recognizes itself as creating a new rule based on its authority over the lower courts that administer plea agreements and its policy and institutional concerns. *Ante*, at 724–729 (majority opinion).

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JUSTICE BARRETT, for her part, adopts a sounder methodology. See *ante*, at 746 (concurring opinion). But, in my view, the common-law-of-waiver principles she invokes cannot justify this decision either for several reasons. First, if today's decision could be justified as an act of common-law finding rather than policymaking, one would expect to find a more robust tradition of decisions applying a similar rule in similar situations. Yet, neither JUSTICE BARRETT nor the Court can point to any. See *infra*, at 768–769. Second, JUSTICE BARRETT cites authorities explaining that certain rights may never be waived. *Ante*, at 747; see *infra*, at 768–769. That general principle is true as far as it goes. But, common-law doctrines require rules with identifiable content for judges to apply, not only general principles. It is not entirely clear how the general principle that some rights cannot be waived leads to the Court's granular rule under which appeals can be waived, but those waivers become void if any of four specific factual scenarios later occur at sentencing. Third, this body of law precluded waivers of certain procedures that implicated the "substantial" features "of the legal tribunal" or the "fundamental mode of its proceeding." R. Bowers, Law of Waiver § 397, p. 394 (1914). It is not clear to me that appeals of sentencing errors—appeals that did not even exist until 100

Of course, the Court's desire for a particular legal rule does not give it the right to create it. "Our duty is to apply the law, not to make it." *Pine Grove* v. *Talcott*, 19 Wall. 666, 677 (1874). Thus, concerns about public perception of the judiciary provide no justification for the Court's decision. The power to change the law to avoid outcomes that the people do not like "lies with the people, and not with the judiciary." *Ibid.*

To the extent that one can infer any source of law from the Court's opinion, it appears to be its so-called supervisory power over lower federal courts. See Tr. of Oral Arg. 97–99, 116–118. The Court's reasoning today is reminiscent of its precedents purporting to exercise that power. Like the Court's decision today, see *ante*, at 726–728, these supervisory-power decisions have justified themselves based on general "considerations of justice not limited to the strict canons" of law. *McNabb* v. *United States*, 318 U. S. 332, 341 (1943). And, like the Court's decision today, see *ante*, at 717, 725–727, prior supervisory-power decisions have justified themselves based on "public perception of the integrity" of the courts. *Young* v. *United States ex rel. Vuitton et Fils S. A.*, 481 U. S. 787, 811 (1987) (plurality opinion). Thus, though the Court conspicuously avoids mentioning its name, the supervisory power appears to be the only conceivable source of authority for the Court's decision.

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The supervisory power of the Supreme Court, however, cannot justify the Court's miscarriage-of-justice exception for four reasons. First, it is doubtful that the power exists. Second, even if it did, it still would not extend to vitiating provisions in valid plea agreements, as the Court's rule effec-

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years after the founding and that must be asserted by the defendant—are sufficiently fundamental to criminal procedure for these doctrines to have any purchase. In any event, Hunter never developed an argument along these lines, which may explain why the Court, on my reading, declined to adopt it.

tively does. Third, the congressionally authorized rulemaking process has addressed appeal waivers, so this Court should not circumvent that process. Finally, the two precedents that the Court relies on as justifying a miscarriage-of-justice exception do no such thing. In the end, the Court has nothing but policy arguments, but even there, its analysis is unpersuasive.

A

The Court has never identified a source for its alleged general supervisory power to dictate to lower courts procedural rules not required by the Constitution, Congress, or the Federal Rules. Cf. *United States* v. *Tsarnaev*, 595 U. S. 302, 315, and n. 1 (2022). Like Justice Scalia, "I do not see the basis for any direct authority to supervise lower courts." *Bank of Nova Scotia* v. *United States*, 487 U. S. 250, 264 (1988) (concurring opinion); see also *Western Pacific R. Corp.* v. *Western Pacific R. Co.*, 345 U. S. 247, 273 (1953) (Jackson, J., dissenting) (describing "this Court's exercise of its vague supervisory powers over federal courts"). Instead, "the Constitution's structure cuts against, and history rules out, the proposition that the Supreme Court possesses inherent supervisory power over inferior court procedure." A. Barrett, The Supervisory Power of the Supreme Court, 106 Colum. L. Rev. 324, 387 (2006).

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The Court "has been remarkably vague about the source of its supervisory authority." *Id.*, at 333. The Court's first exercise of this power came in *McNabb* v. *United States*, 318 U. S. 332 (1943). That decision asserted that this Court can "formulat[e]" rules for lower courts based on "considerations of justice not limited to the strict canons" of the law. *Id.*, at 341. This new assertion of power looked nothing like traditional, unwritten procedural law, in which judges merely applied rules whose content had long been settled by common-law authorities. Instead, when the Court exercised this new supervisory power, it "self-consciously formulate[d] its

own standard." Barrett, 106 Colum. L. Rev., at 376.[10] As legal justification for this novel approach, the *McNabb* Court provided an analysis-free string cite of prior decisions, but none of them provided for anything like the modern supervisory power. R. Pushaw, The Inherent Powers of Federal Courts and the Structural Constitution, 86 Iowa L. Rev. 735, 780–781, and n. 242 (2001) (analyzing the cited cases); see *McNabb*, 318 U. S., at 341. In short, the supervisory power had a late and unconvincing start.

The supervisory power's only "arguable basis" in the Constitution's text comes from its "establishment of this Court as 'supreme,' as distinct from the 'inferior Courts' that Congress has discretion to create." *Tsarnaev*, 595 U. S., at 326 (BARRETT, J., concurring). But, that aspect of Article III's structure does not justify a general supervisory power. That this Court is in some respects "supreme" over other federal courts—we review their judgments—does not remotely entail "that the Constitution requires across-the-board subordination of inferior courts" to the Supreme Court. Barrett, 106 Colum. L. Rev., at 365. Instead, any "viable claim to supervisory authority" over an area of law must be "rooted in history." *Id.*, at 366.

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[10] The supervisory power is thus distinct from two legitimate traditions of unwritten procedural law, neither of which provide any support for the Court's holding today. First, the Court has recognized that courts have "'inherent'" and "ancient" authority to manage their own courtroom and enforce their orders. *Link* v. *Wabash R. Co.*, 370 U. S. 626, 630 (1962). For example, courts in some circumstances have inherent authority to sanction parties, *ibid.*, or to stay proceedings, *Landis* v. *North American Co.*, 299 U. S. 248, 254 (1936). Second, courts can enforce general common-law or equitable procedural rules with an "identifiable content . . . settled by tradition or emergent consensus." A. Barrett, Procedural Common Law, 94 Va. L. Rev. 813, 884 (2008). For example, doctrines of preclusion may derive from longstanding common-law principles. See *ibid.* The Court makes no claim that its miscarriage-of-justice exception is necessary for managing its own courtroom or has been derived from any established common-law doctrine.

History does not suggest that the Supreme Court has inherent authority to create new procedural rules for lower federal courts, either. At the founding, consistent practice revealed "that the framers viewed the establishment of rules of procedure as a legislative function" that was sometimes explicitly "delegated by Congress to the courts." S. Beale, Reconsidering Supervisory Power in Criminal Cases: Constitutional and Statutory Limits on the Authority of the Federal Courts, 84 Colum. L. Rev. 1433, 1467 (1984); cf. 3 J. Story, Commentaries on the Constitution of the United States §§ 1752, 1768 (1833) (explaining that "it is for congress alone to furnish the rules of proceeding, to direct the process, to declare the nature and effect of the process," while courts have "incidental powers" to regulate only internal matters, such as their "own officers" and disruptions to the judicial process). Early Congresses prescribed many procedural rules for federal courts, required them to follow state law on other procedural matters, and often delegated to the Supreme Court the authority to formally promulgate additional procedural rules. W. Baude, J. Goldsmith, J. Manning, J. Pfander, & A. Tyler, Hart and Wechsler's The Federal Courts and the Federal System 727–733 (8th ed. 2025); *Wayman* v. *Southard*, 10 Wheat. 1, 22–23, 42–45 (1825); Judiciary Act of 1789, 1 Stat. 81–90; Process Act of 1789, ch. 21, 1 Stat. 94; Process Act of 1792, 1 Stat. 276. It was "not until the twentieth century" that this Court "claimed the right to prescribe procedure for inferior federal courts" while deciding cases and controversies—instead of acting under a delegated rulemaking authority. Barrett, 106 Colum. L. Rev., at 387. History thus provides no support for the Court's inherent supervisory authority to create a new rule invalidating appeal waivers.[11]

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[11] The Rules Enabling Act has further undermined any argument for the supervisory power. The Act expressly delegates rulemaking power to the Supreme Court subject to a comprehensive process for exercising it, complete with the creation of Rules Committees to consider and develop

B

Even if this Court had a general supervisory power, it could not justify the Court's new miscarriage-of-justice exception to appeal waivers. The supervisory power "deal[s] strictly with the courts' power to control their *own* procedures," but does not authorize setting substantive standards. *United States* v. *Williams*, 504 U. S. 36, 45–47 (1992). When it has been invoked, it has had the more limited scope of protecting judicial "proceedings," *Degen* v. *United States*, 517 U. S. 820, 823 (1996), through "rules of evidence and procedure that are binding" in lower courts, *Dickerson* v. *United States*, 530 U. S. 428, 437 (2000). The typical supervisory power cases thus govern issues related to trial administration, such as jury selection rules and processes, *Thiel* v. *Southern Pacific Co.*, 328 U. S. 217, 225 (1946); *Rosales-Lopez* v. *United States*, 451 U. S. 182, 192 (1981) (plurality opinion), warnings to *pro se* litigants of the consequences of their actions, *Castro* v. *United States*, 540 U. S. 375, 382–383 (2003), the introduction of certain tainted evidence, *McNabb*, 318 U. S., at 345, or the appointment of a prosecutor in contempt proceedings, *Young*, 481 U. S., at 808–809. Likewise, when addressing appellate courts, the supervisory power has been used to require clear explanations to litigants of en banc rehearing procedures. *Western Pacific R. Corp.*, 345 U. S., at 267–268.

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new rules in a particular way. 28 U. S. C. § 2073. Even if the Court had inherent authority to supervise lower courts in the absence of congressional action, it "may well be that the detailed scheme of supervisory rulemaking prescribed by the Rules Enabling Act extinguishes the Court's ability to act outside that process." A. Barrett, The Supervisory Power of the Supreme Court, 106 Colum. L. Rev. 324, 387 (2006); see *Mohawk Industries, Inc.* v. *Carpenter*, 558 U. S. 100, 115 (2009) (THOMAS, J., concurring in part and concurring in judgment) (explaining that Congress " 'designat[ed] rulemaking, "not expansion by court decision," as the preferred means for determining' " judicial procedures).

The Court's decision today exercises a different kind of power. Hunter maintains that his plea agreement is a binding contract, and the appeal waiver it includes is generally enforceable as a matter of contract law. See Brief for Petitioner 2, 32; Tr. of Oral Arg. 44. In ruling for him, the Court therefore appears to empower lower courts to rewrite an otherwise binding agreement made by two parties. The parties agreed to permit appeals only for sentences that exceed the statutory maximum or that were tainted by ineffective assistance of counsel. Now, the Court has revised that contract and the waiver so that the defendant can also appeal a sentence after a miscarriage of justice. The power to supervise the federal courts' own internal processes cannot justify such an act.

The Court tries to solve this problem through an indirect chain of reasoning. Plea agreements are approved by district courts, and the process by which they do so, the Court says, involves a measure of discretion. *Ante*, at 724–725. Thus, the Court continues, the question whether to enforce an appeal waiver in a plea agreement, once under consideration in the court of appeals, is linked to the district court's initial discretionary process to approve the agreement itself. *Ante*, at 725. So, the Court seems to think, it follows that the Supreme Court has inherent supervisory power to prescribe rules for enforcing appeal waivers in the courts of appeals, flowing from its ability to supervise that initial plea agreement approval process in the district courts.

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That logic overlooks what is at issue here. The Court's supervisory authority may have been understood to reach the judicial procedure for accepting the plea agreement itself, see *McCarthy* v. *United States*, 394 U. S. 459, 464 (1969), but it does not follow that it includes the power to change the substantive provisions of valid plea agreements once they have been approved and made binding. This case illustrates the problem: Hunter is not challenging anything related to the District Court's approval of his plea agreement.

To the contrary, he seems to hope that the agreement is still binding, as he suggests that he would resist any effort by the Government to reinstate the nine counts it dropped. See Tr. of Oral Arg. 6–7. He instead simply wants the agreement changed by the Court of Appeals to permit his appeal. But, the supervisory power does not permit either rewriting the parties' contract or changing plea-bargaining law.[12]

C

Even if the Court could recharacterize its rule as procedural, it was not the Court's place to promulgate it. The committee responsible for developing the Federal Rules of Criminal Procedure has declined to advance a rule like this one, and Congress established that rulemaking process to evaluate the costs and benefits of various policy proposals.

"Whatever the scope" of this Court's supervisory power, it does not include "the power to . . . circumvent" the Federal Rules of Criminal Procedure. *Carlisle* v. *United States*, 517 U. S. 416, 426 (1996); see *Tsarnaev*, 595 U. S., at 315–316. The Rules Enabling Act establishes a reticulated process for this Court to alter lower courts' procedures. In this process, the Judicial Conference's Rules Committees recommend Rules of practice, procedure, and evidence after an extensive public process, 28 U. S. C. § 2073, so that the Rules "dra[w] on the collective experience of bench and bar," *Mohawk Industries, Inc.* v. *Carpenter*, 558 U. S. 100, 114 (2009). Then,

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[12] The Court cannot escape this problem by framing its rule as addressing the enforceability of the agreement. Generally, the question "whether a particular agreement is enforceable" has been understood as "one of substance, not procedure." *Bassidji* v. *Goe*, 413 F. 3d 928, 936 (CA9 2005); *MediaNews Group, Inc.* v. *McCarthey*, 494 F. 3d 1254, 1260 (CA10 2007) (similar); cf. *Perry* v. *Thomas*, 482 U. S. 483, 492–493, n. 9 (1987) (noting that validity, revocability, and enforceability of contracts are generally state-law questions in federal court); *Chalk* v. *T–Mobile USA, Inc.*, 560 F. 3d 1087, 1092 (CA9 2009) (holding that "unconscionability" is a state-law question); *Hines* v. *National Entertainment Group, LLC*, 140 F. 4th 322, 327–328 (CA6 2025) (similar).

before the Supreme Court adopts the recommendations as binding rules, it must first transmit them to Congress. §2074. Because this process enables "thorough" consideration of the policy issues, this Court is ill equipped to second-guess those policy judgments while it is merely hearing one case. *Shannon* v. *United States*, 512 U. S. 573, 587 (1994) (describing statutes). Recent involvement by the Rules Committee on an issue therefore "counsels hesitation in invoking our supervisory powers." *Ibid.*

The Rules Committee has recently addressed appeal waivers. In fact, it has paid close attention to them, advanced rules in this area, and declined to adopt a rule like the Court's. In 1996, the Rules Committee proposed what is now Federal Rule of Criminal Procedure 11(b)(1)(N), which requires district courts to explain appeal waivers to the defendant before accepting a plea agreement containing one. See N. King & M. O'Neill, Appeal Waivers and the Future of Sentencing Policy, 55 Duke L. J. 209, 222 (2005). Some immediately objected that such a rule would imply general acceptance of appeal waivers, which they opposed because of the risk that significant trial-judge errors would be shielded from review. *Id.*, at 222–223. The Rules Committee approved the recommendation anyway, which this Court accepted and Congress allowed. Appeal waivers, now seemingly approved of by the Federal Rules, continued to become more prevalent. *Id.*, at 224.[13] The Rules Committee has remained focused on appeal waivers in the years since. In 2015, the Committee heard a proposal to prevent courts from accepting appeal waivers before sentencing. Advisory Committee on Criminal Rules, Draft Minutes, pp. 37–38 (Mar. 16–17, 2015). But, the Committee unanimously agreed not to pursue it. *Ibid.* And, at the meeting earlier this year, a

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[13] Although the Advisory Committee said that it was not taking a position on the validity of appeal waivers, the new Rule in practice "solidified" them. K. Bennardo, Post-Sentencing Appellate Waivers, 48 U. Mich. J. L. Reform 347, 358–359, n. 59 (2015).

member proposed requiring further disclosure to defendants about the consequences of appeal waivers. Advisory Committee on Criminal Rules, Minutes, pp. 71–72, (Jan. 6, 2026) (noting it was taken under advisement). But, even after hearing such proposals, the Rules Committee has not advanced any recommendation to preclude defendants from waiving certain appeals.

By effectively legislating a new rule in this area, the Court intrudes on the calibrated policymaking process established by the Rules Enabling Act. The Rules Committee stands equipped to weigh policy tradeoffs, collect data, engage in a "thorough and exhaustive review" of the issue, and craft a rule that achieves fairness for all parties. *Shannon*, 512 U. S., at 587. Therefore, this Court should have "hesitat[ed]" before creating a new rule that the Rules Committee "could have included" in its deliberations on appeal waivers, but ultimately "chose not to." *Ibid.*

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D

Finally, the sparse precedents that the Court relies on do not justify its miscarriage-of-justice exception. See *ante*, at 725–726.

In *Mezzanatto*, 513 U. S. 196, a defendant sought to be excused from his waiver of certain evidentiary protections. The District Court held him to his waiver. The defendant was convicted, and on appeal, this Court upheld the conviction and the enforcement of the waiver. *Id.*, at 199, 210–211. *Mezzanatto*'s holding, then, provides no support for the Court's exception that it creates today. In fact, *Mezzanatto*'s reasoning emphasized that "we have presumed that statutory provisions are subject to waiver," and that waivers of evidentiary protections are "'liberally enforced.'" *Id.*, at 201, 202. So, the Court today must turn to a single paragraph of dicta in *Mezzanatto*, which suggested that "[t]here may be some evidentiary provisions that are so fundamental to the reliability of the factfinding process that they may never be waived," before concluding that no such provision

was implicated. *Id.*, at 204. In its decision today, however, the Court makes clear that it does not believe that the right to appeal a sentence is so fundamental that it "may never be waived." See *ante*, at 727–729. The Court instead confirms that the right to appeal almost always can be waived, but the waiver becomes unenforceable in the rare circumstance of a miscarriage of justice. Because *Mezzanatto*'s dicta addresses only protections that can never be waived, it cannot support the Court's rule.

In *Wheat* v. *United States*, 486 U. S. 153 (1988), this Court declined to enforce a different kind of waiver, but it did so based on a requirement in the Federal Rules. There, a defendant sought to retain counsel who was currently representing his co-conspirators. The Government objected to the joint representation due to the risk of a conflict of interest. Brief for United States in *Wheat* v. *United States*, O. T. 1987, No. 87–4, pp. 3, 7. The defendant waived his right to a conflict-free counsel. The District Court refused to accept the waiver and rejected the defendant's choice of counsel. This Court affirmed. Central to its reasoning, the Court explained that "the Federal Rules of Criminal Procedure direct trial judges to investigate specially" cases with joint representations that may create conflicts of interest "'to protect each defendant's right to counsel.'" *Wheat*, 486 U. S., at 161 (quoting Fed. Rule Crim. Proc. 44(c)). The Notes of the Advisory Committee even suggested that a district court could order that defendants be separately represented. 486 U. S., at 161. So, the Court affirmed a District Court for doing what the Federal Rules called for. But, here, the Court remands for evaluation of whether enforcement of a waiver will result in a miscarriage of justice, even though the Federal Rules say nothing about miscarriages of justice.

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E

Without any legal justification for its rule, the Court appeals primarily to the policy instinct that unfairness could result from its farfetched hypotheticals. Surely, the Court

reasons, a defendant must be able to appeal a sentence selected by an orangutan. *Ante*, at 726–727. I disagree with any insinuation that the only thing stopping federal judges from violating their oaths is the possibility of a sentencing appeal. I also disagree with the assumption that the problem of possibly erroneous trial courts can only be solved by possibly erroneous appellate judges. The Government even notes that it can decline to enforce waivers if an egregious injustice occurs. Brief for United States 31. There were no criminal appeals for over 100 years of American history, and our legal system did not descend into chaos.

Moreover, the Court's policy reasoning overlooks important drawbacks to its approach. For one thing, it is not obvious that this rule will provide fairness to defendants. After all, "in the long term," uncertainty about whether an appeal waiver will be enforced "eliminate[s] a bargaining tool to convince the government to drop pending charges." *Portis* v. *United States*, 33 F. 4th 331, 336 (CA6 2022). Defendants like Hunter, therefore, may have to forgo other valuable consideration to obtain similarly lenient sentences. A "sounder" approach is "to permit the interested parties to enter into knowing and voluntary negotiations without any arbitrary limits on their bargaining chips." *Mezzanatto*, 513 U. S., at 208. For another, the Court's approach may lead to a flood of new meritless sentencing appeals. One study concluded that, as of 2003, 65% of plea agreements in federal cases contained appeal waivers. King, 55 Duke L. J., at 231. Of agreements with a waiver, 80% waived both direct appeals and collateral attacks under § 2255. *Id.*, at 243. If these numbers have remained steady over the two decades since—and I have no reason to doubt it—the consequences of today's decision for the federal courts of appeals are sobering. Last year, over 76,000 defendants pleaded guilty. Admin. Office of the U. S. Courts, U. S. District Courts–Criminal Statistical Tables for the Fed. Judiciary (2026) (Table D–4). Over the last 10 years, more than 680,000 de-

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fendants have pleaded guilty.[14] Between defendants who can appeal and prisoners who can collaterally attack already-final sentences, it is not hard to imagine a hundred thousand claims that should be barred by waivers that will now be filed in reliance on the Court's exception. The Court's efforts to keep this exception narrow may make it hard to succeed on these claims, accord, *ante*, at 745–746 (KAVANAUGH, J., concurring), but a miscarriage of justice will always be easy to allege. The courts of appeals will now have to sift through many appeals even though miscarriages of justice are, as the Court admits, "rare." *Ante*, at 729 (majority opinion).

Ultimately, though, how I weigh the tradeoffs between the risk of a rogue district court judge issuing a lawless sentence, the diminished utility of the appeal-waiver bargaining chip, and the potential flood of new appeals should not matter. In the absence of a legal principle saying otherwise, Hunter's plea agreement and appeal waiver are valid and should be enforced.

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IV

Hunter knowingly and voluntarily agreed to waive his appeal rights, and the exceptions he preserved are not implicated here. Accordingly, I would enforce his agreement and dismiss his appeal. I respectfully dissent.

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[14] Admin. Office of the U. S. Courts, U. S. District Courts–Criminal Statistical Tables for the Fed. Judiciary (2015–2025) (Table D–4).